From: Nicholas Scarr <nscarr@quantlogic.com>
To: Adam Clutterbuck <ac@hxc.uk>
CC: Andy Lyne <Andy.Lyne@qlaims.com>, Claims <Claims@qlaims.com>, Louisa Scarr <scarrlouisa@gmail.com>, Simon Fenwick <SFenwick@qlaims.com>
Date: Wednesday 21 January 2026 at 15:45
Subject: Re: Qlaim 1816 N Scarr Fw: 1 Riverside Cottages, The Dean, Alresford, SO24 9BE / Mr & Mrs Nicholas & Louisa Scarr

Dear Adam,

Thank you for your email. I completely understand your position regarding fees.

At the outset, I want to acknowledge that insurers have agreed to the combined Type A and Type C waterproofing approach and, in doing so, have accepted the vast majority of the measures you have identified. We are clearly very close to completing this, and my aim is simply to reach full agreement.

My remaining concern is that omitting the final resilience and redundancy elements leaves the system materially vulnerable, as already set out in your reports, correspondence, and Maclennan's proposals. These measures are integral to the system's effective operation. Their omission exposes the system to foreseeable failure modes and, in practical terms, risks creating an installation that is fated to fail under predictable conditions. As you and Maclennan have consistently explained, these elements are supported by accepted industry practice and relevant regulatory guidance.

Having reviewed your report and our subsequent correspondence in detail, I am satisfied that the technical position from an expert perspective is already clear.

On the fee point, where an insurer's position diverges from the recommendations of the appointed expert, I consider it fair and reasonable to seek further clarity. In that context, I will discuss your fee point with Simon Fenwick at Qlaims, although I hope this ultimately proves academic and that agreement is reached promptly.

For the time being, I would prefer that no further work is undertaken. I believe we have reached a crystallised position where insurers will either agree or disagree with the remaining redundancy points, after which a commercial view can be taken on next steps. I remain hopeful that a consensual outcome can be achieved.

Finally, I should note the urgency of the situation. With the property

stripped out, it is highly exposed to further secondary damage, and it is clearly in all parties' interests that progress continues without delay.

Kind regards,

Nicholas

Nicholas Scarr

On Tue, 20 Jan 2026 at 16:50, Adam Clutterbuck <ac@hxc.uk> wrote:

> Hi Nicholas
>
>
>
> Thank you for the update with regards to payment.
>
>
>
> With regards to your request, I am sorry to ask, but as per my note of
> 12/12/25 (07:15) I will need your undertaking that you will pay my fees for
> any of my time incurred since my first invoice in the event that insurers
> are unwilling to pay for any of my additional input.
>
>
>
> Some of the points you ask are what I would term 'Insurance' questions and
> therefore outside of my expertise.
>
>
>
> With regards to the more technical questions you ask, I would need to
> consider these carefully given the overall circumstances and this would
> involve reviewing details of your claim and what I have already written to
> ensure my reporting can be relied upon.
>
>
>
> I hope you understand as I am of course happy to assist if needed.
>
>
>
> Kind regards

>
> Adam
> ----------
>
> Adam
> Clutterbuck
>
>
> [image: A picture containing brass knucks, scissors Description
> automatically generated]
>
> *Home & Commercial*
>
> *E:* ac@hxc.uk
>
> *T:* 01722 714455 (direct line)
>
> *M:* 07904 093727
>
>
>
> *From:* Nicholas Scarr <nscarr@quantlogic.com>
> *Sent:* 20 January 2026 15:16
> *To:* Adam Clutterbuck <ac@hxc.uk>
> *Cc:* Andy Lyne <Andy.Lyne@qlaims.com>; Claims <Claims@qlaims.com>;
> Louisa Scarr <scarrlouisa@gmail.com>
> *Subject:* Re: Qlaim 1816 N Scarr Fw: 1 Riverside Cottages, The Dean,
> Alresford, SO24 9BE / Mr & Mrs Nicholas & Louisa Scarr
>
>
>
> Hi Adam,
>
> First, some good news: I am pleased to confirm that I have been advised
> that funding for various bills, including yours, will be with us in the
> next 5 working days.
>
> However, following our conversation this morning, I have received a
> concerning update regarding the insurance claim itself. I am advised by one
> of the Directors of Qlaims (who had a call with Lloyds Bank General
> Insurance this morning) that they are minded to turn down critical elements

> of the waterproofing system on various grounds, including the argument that
> it constitutes "betterment."
>
> I was also advised that although they were founding members of the "Build
> Back Better" scheme and have widely publicised that fact, for some bizarre
> reason the benefits do not apply to our policy.
>
> I have precised the position below and would be very grateful for your
> comments to help us correct their technical assumptions.
>
> *Context: The Insurer's Objections (Garrett Young)* The Loss Adjuster is
> attempting to decline key parts of the specification based on the following
> assertions:
>
> - *On Redundancy:* He argues that *dual pumps (duty/standby)* are
> "betterment" and that he *"would look to agree to an internal pump
> installation but not multiple pumps."*
> - *On Batteries:* He argues *battery backup* is unnecessary because if
> power fails, the building is *"probably beyond the capacity"* of the
> system and the waters will be *"very deep with nothing to pump into"*
> (assuming local drains are surcharged).
> - *On Controls:* He states he is *"not sure what they do"* and that *control
> units and dialers* *"appear to be a warning system"* which he
> considers "betterment."
> - *On External Works:* He classifies the *external drainage/sump* as
> "betterment" and questions the discharge strategy, asking: *"where is
> the water being pumped as the sewage drainage system will be underwater."*
>
> *The Ask* I am not asking you to comment on the commercial aspect of
> whether these items constitute "betterment." Rather, I am seeking your
> confirmation, *as an expert in this field*, that the following elements
> are *essential technical requirements* for a compliant waterproofing
> system given the specific site conditions (a partially underground
> structure subject to groundwater pressure).
>
> Could you please confirm the following:
>
> 1. *Dual Pumps (Redundancy):* That for a structure of this nature, a
> single-pump system would lack necessary resilience, and that Dual Pumps
> (Duty & Standby) are the standard requirement to meet *BS 8102:2022*
> principles.

> 2. *Battery Backup & Building Regulations:* That for a partially
> underground structure, *Building Regulations Part C* require "adequate
> protection" from ground moisture. Could you confirm that without battery
> backup, a pumped system cannot provide this continuous protection during
> foreseeable power outages, and therefore omitting batteries would result in
> a non-compliant system under the functional requirements of the Building
> Regulations?
> 3. *External Sump & Separation:* That the external sump is necessary
> to intercept water before it loads the structure and to facilitate the
> remote discharge (40-50ft away). Also, that combining internal and
> external systems into a single pump is generally not recommended due to the
> increased risk of surcharge or backflow.
> 4. *Telemetry/Alarms:* That monitoring is a key component to prevent
> "silent failure" (e.g., pump fault or power loss) which could lead to
> avoidable ingress.
>
> Essentially, I am looking for your expert confirmation that these are not
> optional "nice-to-haves," but are the fundamental components required to
> deliver a robust and compliant waterproofing strategy for this property.
>
> Many thanks for your help with this.
>
> Kind regards,
>
> *Nicholas*
>
>
>
>
>
>
>
>
> Nicholas Scarr
>
> CEO – Quantlogic
>
> UK (M):+44 (0)7768 604849
>
> Email: nscarr@quantlogic.com
>
> Website: www.quantlogic.com

>
> *Penshurst House**|** 352-356 Battersea Park Road **|** London **|**SW11
> 3BY** | **UK *
>
>
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>
>
>
>
>
> On Tue, 20 Jan 2026 at 10:29, Adam Clutterbuck <ac@hxc.uk> wrote:
>
> Good morning, Nicholas
>
>
>
> Thank you for your call; I am sorry to hear that matters are not
> progressing.

>
>
>
> I spoke briefly with Kevin Chellew and he assures me that he and Garret
> Young (loss adjuster) are doing their best to get matters moving as soon as
> possible.
>
>
>
> I understand you to confirm that your policy includes the ‘Build Back
> Better’ (BBB) element so hopefully this will cover costs that would
> normally be classified as betterment or improvements over above
> reinstatement as before on a like for like basis.
>
>
>
>
>
> Kind regards
>
> Adam
> ---
>
> Adam
> Clutterbuck
>
>
> [image: A picture containing brass knucks, scissors Description
> automatically generated]
>
> *Home & Commercial*
>
> *E:* ac@hxc.uk
>
> *T:* 01722 714455 (direct line)
>
> *M:* 07904 093727
>
>
>
> *From:* Adam Clutterbuck

> *Sent:* 19 January 2026 18:44
> *To:* 'Nicholas Scarr' <nscarr@quantlogic.com>
> *Cc:* 'Andy Lyne' <Andy.Lyne@qlaims.com>; 'Claims' <Claims@qlaims.com>;
> 'Louisa Scarr' <scarrlouisa@gmail.com>
> *Subject:* RE: Qlaim 1816 N Scarr Fw: 1 Riverside Cottages, The Dean,
> Alresford, SO24 9BE / Mr & Mrs Nicholas & Louisa Scarr
>
>
>
> Good evening, Nicholas
>
>
>
> I sincerely hope that the way forward for your home has been agreed and
> work will soon be underway.
>
>
>
> Please could you ask if my fee invoice can be paid this month and let me
> know.
>
>
>
> Kind regards
>
> Adam
> ----------
>
> Adam
> Clutterbuck
>
>
> [image: A picture containing brass knucks, scissors Description
> automatically generated]
>
> *Home & Commercial*
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> *E:* ac@hxc.uk
>
> *T:* 01722 714455 (direct line)
>

> *M:* 07904 093727
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>
> *From:* Adam Clutterbuck
> *Sent:* 27 November 2025 21:52
> *To:* 'Nicholas Scarr' <nscarr@quantlogic.com>
> *Cc:* Andy Lyne <Andy.Lyne@qlaims.com>; Claims <Claims@qlaims.com>;
> Louisa Scarr <scarrlouisa@gmail.com>
> *Subject:* RE: Qlaim 1816 N Scarr Fw: 1 Riverside Cottages, The Dean,
> Alresford, SO24 9BE / Mr & Mrs Nicholas & Louisa Scarr
>
>
>
> Good evening, Nicholas
>
>
>
> Please find attached my fee invoice for my time to date which I trust you
> will find to be in order.
>
>
>
> I sincerely hope that your insurers will respond soon with a view to
> progressing the works at your property.
>
>
>
> Kind regards
>
> Adam
> ---
>
> Adam
> Clutterbuck
>
>
> [image: A picture containing brass knucks, scissors Description
> automatically generated]
>
> *Home & Commercial*

>
> *E:* ac@hxc.uk
>
> *T:* 01722 714455 (direct line)
>
> *M:* 07904 093727
>
>
>
> *From:* Nicholas Scarr <nscarr@quantlogic.com>
> *Sent:* 27 November 2025 20:18
> *To:* Adam Clutterbuck <ac@hxc.uk>
> *Cc:* Andy Lyne <Andy.Lyne@qlaims.com>; Claims <Claims@qlaims.com>;
> Louisa Scarr <scarrlouisa@gmail.com>
> *Subject:* Re: Qlaim 1816 N Scarr Fw: 1 Riverside Cottages, The Dean,
> Alresford, SO24 9BE / Mr & Mrs Nicholas & Louisa Scarr
>
>
>
> Thanks Adam. This is all very helpful I will discuss this with Andy
> tomorrow. We will make sure this is done asap.
>
>
>
> Yes, please do send through your invoice to date and Andy will forward it
> insurers for payment.
>
>
>
> Kind regards,
>
>
>
> Nicholas
>
> Nicholas Scarr
>
> Sent from my iPhone
>
>
>

> On 27 Nov 2025, at 19:37, Adam Clutterbuck <ac@hxc.uk> wrote:
>
> ■
>
> Thank you Nicholas
>
>
>
> It would be helpful if the first floor was screened off and sealed with
> polythene; you can get a zip/wall-door to allow access, and this will allow
> the upstairs to be in a controlled climate whilst downstairs will remain
> unheated and cold/damp.
>
>
>
> Your contractor may have already, or available to purchase …something
> along these lines.
>
>
>
>
>
>
>
> https://www.protectascreen.com/products/screening-material-zip-door-kit?_pos=3&_sid=f58fffe95&_ss=r
>
>
>
> Or Amazon -
> https://www.amazon.co.uk/ZipWall-ZF2-Zipwall-White/dp/B00UADEJ4A/ref=asc_df_B00UADEJ4A?mcid=7e10ef53fd063872b739f110f296531d&th=1&hvocijid=17682532275037255662-B00UADEJ4A-&hvexpln=74&tag=googshopuk-21&linkCode=df0&hvadid=696285193871&hvpos=&hvnetw=g&hvrand=17682532275037255662&hvpone=&hvptwo=&hvqmt=&hvdev=c&hvdvcmdl=&hvlocint=&hvlocphy=9218579&hvtargid=pla-2281435176698&gad_source=1
>
>
>
> If I submit a fee invoice to date would you be able to forward to insurers
> please?
>
>
>
> Kind regards

>
> Adam
> ----------
>
> Adam
> Clutterbuck
>
>
> <image001.png>
>
> *Home & Commercial*
>
> *E:* ac@hxc.uk
>
> *T:* 01722 714455 (direct line)
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> *M:* 07904 093727
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>
>
> *From:* Nicholas Scarr <nscarr@quantlogic.com>
> *Sent:* 27 November 2025 19:20
> *To:* Adam Clutterbuck <ac@hxc.uk>
> *Cc:* Andy Lyne <Andy.Lyne@qlaims.com>; Claims <Claims@qlaims.com>;
> Louisa Scarr <scarrlouisa@gmail.com>
> *Subject:* Re: Qlaim 1816 N Scarr Fw: 1 Riverside Cottages, The Dean,
> Alresford, SO24 9BE / Mr & Mrs Nicholas & Louisa Scarr
>
>
>
> Adam, thanks for the heads up also about the dehumidifier we will get on
> to that. N
>
> Nicholas Scarr
>
> Sent from my iPhone
>
>
>
> On 27 Nov 2025, at 15:16, Nicholas Scarr <nscarr@quantlogic.com> wrote:
>

> ■Many thanks Adam.
>
>
>
> Appreciate the update. I have also written to the COO of Qlaims - Simon
> Fenwick after speaking with him yesterday.
>
>
>
> Andy is also pushing hard so hopefully we will get this over the line in
> the near future.
>
>
>
> I am also attaching an email from Maclennans which confirms what they said
> to us yesterday and is just further evidence of the position.
>
>
>
> <image3.jpeg>
>
>
>
>
>
> Many thanks for your help Adam. It is much appreciated.
>
>
>
> Kind regards,
>
>
>
> Nicholas
>
>
>
>
>
> Nicholas Scarr
>

> Sent from my iPhone
>
>
>
> On 27 Nov 2025, at 15:04, Adam Clutterbuck <ac@hxc.uk> wrote:
>
> ■
>
> Good afternoon, Andy
>
>
>
> I received a call earlier today from Garrett Young of Davies and discussed
> the various points he was considering.
>
>
>
> I believe that answered all of his questions accurately and mentioned a
> few points that I felt were relevant.
>
>
>
> I hope that he will be able to help progress matters with the claim.
>
>
>
> Just a thought, if there is not already a dehumidifier upstairs, it would
> be recommended to install one to combat condensation at this time of year.
>
>
>
> It will use power, and need to be checked and emptied quite often, but
> should help to prevent any secondary issues at first floor level.
>
>
>
> I did not discuss this with Mr Young, but you may wish to raise the
> suggestion.
>
>
>

> Kind regards
>
> Adam
> ----------
>
> Adam
> Clutterbuck
>
>
> <image001.png>
>
> *Home & Commercial*
>
> *E:* ac@hxc.uk
>
> *T:* 01722 714455 (direct line)
>
> *M:* 07904 093727
>
>
>
> *From:* Adam Clutterbuck
> *Sent:* 24 November 2025 16:23
> *To:* 'Andy Lyne' <Andy.Lyne@qlaims.com>
> *Cc:* Nicholas Scarr <nscarr@quantlogic.com>; Claims <Claims@qlaims.com>
> *Subject:* RE: Qlaim 1816 N Scarr Fw: 1 Riverside Cottages, The Dean,
> Alresford, SO24 9BE / Mr & Mrs Nicholas & Louisa Scarr
>
>
>
> Hi Andy
>
>
>
> Thank you for your email together with that from Kevin Chellew.
>
>
>
> I confirm that I have had no contact with Building Control and have no
> contact there either.
>

>
>
> I don’t have any experience with Building Control being asked to comment
> upon waterproofing proposals; I may be wrong, but I would expect them to
> refer an enquirer to the Building Regulations and publications/Standards as
> referred to in the relevant parts of the Regulations.
>
>
>
> I don’t know if it is helpful, but in the past with cases where
> waterproofing has failed, it is sometimes thought by some that there may be
> some responsibility on the part of the Building Control officer who was
> involved with the project; however, I have been advised that there is
> unlikely to be any liability on their part.
>
>
>
> I am sorry I can’t be more helpful as I appreciate that this is an urgent
> issue.
>
>
>
> Kind regards
>
> Adam
> ----------
>
> Adam
> Clutterbuck
>
>
> <image001.png>
>
> *Home & Commercial*
>
> *E:* ac@hxc.uk
>
> *T:* 01722 714455 (direct line)
>
> *M:* 07904 093727
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>
>
> *From:* Andy Lyne <Andy.Lyne@qlaims.com>
> *Sent:* 24 November 2025 16:09
> *To:* Adam Clutterbuck <ac@hxc.uk>; Claims <Claims@qlaims.com>
> *Cc:* Nicholas Scarr <nscarr@quantlogic.com>; Claims <Claims@qlaims.com>
> *Subject:* Qlaim 1816 N Scarr Fw: 1 Riverside Cottages, The Dean,
> Alresford, SO24 9BE / Mr & Mrs Nicholas & Louisa Scarr
>
>
>
> Hi Adam,
>
>
>
> Please see an email I have received from Kevin Chellew. Do you have a
> point of contact as requested by Kevin?
>
>
>
> Best Regards
>
>
>
> *Andy Lyne*
> Qlaims Adjuster
>
>
>
> Mob: +44 (0) 7887522332
>
>
>
> *Qlaims Limited*
>
> Level 30, The Leadenhall Building
>
> 122 Leadenhall Street
>
> London EC3V 4AB
>

>

>

> *Qlaims.com

> <https://link.edgepilot.com/s/600afff4/jcECHIRza0_EkGLnuNPkLg?u=https://qlaimslimited.sharepoint.com/Shared%2520Documents/Branding/Qlaims%2520Templates/Qlaims.com>*

>

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> [image: Logo Description automatically generated]

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>

>

>

> Connect with us on LinkedIn to keep up to date with our evolving claims

> products and services – our Qlaims Insurance and Qlaimstech is really

> making a difference to the way Clients' claims are handled!

>

>

>

>

>

> [image: Logo Description automatically generated]

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>

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> align with the General Data Protection Regulation. All our communications

> are also compliant with the Privacy and Electronic Communications Regulation

> ----------

>

> *From:* Sharon Thomas <sharon.thomas@allied-solutions.co.uk>
> *Sent:* 24 November 2025 08:11
> *To:* Andy Lyne <Andy.Lyne@qlaims.com>
> *Cc:* Kevin Chellew <kevin.chellew@allied-solutions.co.uk>; Camilla
> Chellew <camilla.chellew@allied-solutions.co.uk>
> *Subject:* 1 Riverside Cottages, The Dean, Alresford, SO24 9BE / Mr & Mrs
> Nicholas & Louisa Scarr
>
>
>
> Good Morning Andy,
>
>
>
> I have discussed the Report provided by Adam Clutterbuck with Garrett
> Young on Friday 21st November 2025, and have agreed to liaise with the
> Building Control Establishment upon my return from Leave, in order to
> identify what they consider would be a satisfactory waterproofing
> arrangement at the above property.
>
>
>
> Please can you advise whether Adam has had any liaison with the Building
> Control Establishment and, if so, who was the point of contact as I will
> progress matters in this regard upon my return.
>
>
>
> Many thanks for your cooperation on this matter which is greatly
> appreciated.
>
>
>
> Kind regards,
>
>
>
> *Kevin Chellew MRICS*
>
>
>

> --

>

> Dictated by: *Kevin Chellew MRICS*

>

> Issued by:

>

> Sharon Thomas

>

> Administrator

>

> Allied Group - Allied Solutions Ltd/Allied Design Consultancy (UK) Ltd

>

> Phone: 01792 650 010

>

> Email: sharon.thomas@allied-solutions.co.uk

> <https://urldefense.proofpoint.com/v2/url?u=http-3A__allied-2Dsolutions.co.uk&d=DwMFaQ&c=euGZstcaTDllvimEN8b7jXrwqOf-v5A_CdpgnVfiiMM&r=oFR7KLTRpFRH50quNXdQmpm92pMtPDNhmJ7-xZ0bmSg&m=1nBn1Fm-J0QH9PSqVK-f93vj3dZoTSoCbxabCHV8v15FsWsbISo2YCFT6Ef6i954&s=-4r-zFgIW5Ww7ChNM16nUT_aom01BVp4bv8uJ16nssk&e=>

>

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Attachments (1):

- image001.png (128,288 bytes)